

Court No. - 92

Case :- APPLICATION U/S 482 No. - 8323 of 2024

Applicant :- Smt Omwati

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Saif Ali

Counsel for Opposite Party :- G.A.

Hon'ble Prashant Kumar,J.

1. Heard Sri Saif Ali, learned counsel for the applicant, Sri S.D. Pandey, learned A.G.A. for State-O.P. no.1 and perused the record.

2. The present application under Section 482 Cr.P.C. has been filed by the applicant praying for quashing summoning order dated 19.03.2013 and its other consequential order as well as entire proceedings of Case No.236 of 2013 (State vs. Omwati) arising out of Case Crime No.119 of 2008, under Section 135/138 of Electricity Act, Police Station-Khair, District-Aligarh, pending in the Court of Special Judge (E.C. Act), Aligarh.

3. Learned counsel for the applicant submits that an FIR was lodged on 09.04.2008 under Section 135/138 of Electricity Act and thereafter all the electricity dues were paid off. Accordingly, a final report was filed on 11.05.2008. Five years thereafter, on 16.03.2013 an application was moved on behalf of the Electricity Department stating that the dues have not been paid. Accordingly, on 19.03.20213, the final report was rejected and summons were also issued against the applicant. The said order as well as entire proceedings of the criminal case is under challenge in this application. He submits that it is only on 24.01.2024 when the police came to applicant's house with NBW, he got the knowledge about the proceedings of the case. He further submits that Clause 6.15(b) of the Electricity Supply Code, 2005 provides that no sum due from any consumer shall be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrear of charges of electricity supplied, and the supply of the electricity shall not be disconnected by licensee for this reason. In this backdrop, he submits that after five years, the recovery is not permissible. Once the money has been paid it is not open for the department to ask the money and that too, after five years.

4. The matter requires consideration.

5. Issue notice to O.P. no.2, returnable at an early date. Steps be taken within a week.

6. The opposite parties are granted four weeks' time to file counter affidavit. Applicant will have two weeks thereafter to file rejoinder affidavit, if any.

7. List this matter on 13.05.2024.

8. No coercive actions shall be taken against the applicant in the aforesaid case, till the next date of listing.

Order Date :- 15.3.2024

Manish Himwan



HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 482 No. - 8323 of 2024

Smt Omwati

.....Applicant(s)

Versus

State of U.P. and Another

.....Opposite
Party(s)

Counsel for Applicant(s)	:	Saif Ali
Counsel for Opposite Party(s)	:	G.A., Shiv Kumar, Vikram Kumar

Court No. - 76

HON'BLE SANJAY KUMAR PACHORI, J.

List of cases has been revised. None is present on behalf of the applicant to press this application. However, learned A.G.A. is present.

Learned counsel for the power corporation may file counter affidavit within three weeks.

Rejoinder affidavit, if any, may be filed within one week thereafter.

List this case on 13.08.2026.

Interim order, if any, is extended till the next date of listing.

May 22, 2026

Ishan

(Sanjay Kumar Pachori,J.)